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IN THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

UNITED STATES,
Appellee

v.

Sergeant
HASAN K. AKBAR,
United States Army,
Appellant

BRIEF ON BEHALF OF APPELLEE

Docket No. 20050514

Tried at Fort Knox, Kentucky and Fort Bragg, North Carolina on 9 March, 10 and 24 May, 24 August, and 2 December 2004; 31 January, 4 March, and 1, 6-8, 11-14, 18-22, and 25-28 April 2005, by a general court-martial, appointed by the Commander, XVIII Airborne Corps and Fort Bragg, Colonels Dan Trimble, Patrick J. Parrish, and Stephen R. Henley, military judges, presiding.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

JOSHUA W. JOHNSON
Captain, JA
Appellate Government Counsel

NICOLE D. FISH
Captain, JA
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ADAM S. KAZIN
Major, JA
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Major, JA
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Statement of the Case

An enlisted panel sitting as a general court-martial convicted appellant, contrary to his pleas,[1] of premeditated murder (two specifications) and attempted premeditated murder (three specifications), in violation of Articles 80 and 118 of the Uniform Code of Military Justice (UCMJ).[2] The panel sentenced appellant to death on 28 April 2005.[3] The convening authority approved the adjudged sentence[4]

[1] R. 618.
[2] R. 2652; 10 U.S.C. §§ 880 and 918 (2002); Charge Sheet.
[3] R. 3181.
[4] Action.

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on 16 November 2006.[4] Appellant's case was docketed with this Court on 6 December 2006.

Statement of Facts

Appellant stands convicted of the premeditated murder of Army Captain (CPT) Christopher Siefert and Air Force Major (MAJ) Gregory L. Stone, as well as the attempted premeditated murder of sixteen other Officers on the night of 22 March 2003. Appellant was a member of Company A, 326th Engineer Battalion, 1st Brigade Combat Team, 101st Airborne Division (Air Assault) staged at Camp Pennsylvania, Kuwait on the eve of Operation Iraqi Freedom.

The Crimes

On the night of the murders appellant was assigned to guard grenades with Private First Class (PFC) Christopher Pannell.[5] The grenades were located in High Mobility Multipurpose Wheeled Vehicle (HMMWV) Alpha 21, which was appellant's squad vehicle. PFC Pannell went to find his replacement, PFC Thomas Wells, and left appellant alone with the grenades.[7] Appellant was also left alone with the grenades when PFC Wells went to wake up their relief later in the evening.[8] When left alone, appellant hid four M-67 fragmentation grenades and three M-14 incendiary grenades in his pro-mask carrier and some of the canisters in his Joint Service Lightweight Integrated Suit Technology (JLIST) bag.[9] After his guard duty ended, appellant returned to his tent on Camp Pennsylvania's Pad 4.[10]

Appellant donned the Interceptor Body Armor (IBA) of PFC Pannell and left the sleep tent, leaving his own IBA behind.[11] Appellant then walked from Pad 4 to Pad 7, where the Brigade Headquarters was located;[12] a distance of approximately 500 to 600 meters.[13] Appellant went to the stand-alone light generator and switched it off, plunging the outside of Pad 7 into

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[5] R. 1583-87.
[6] R. 1583-86, 1607, 1627; Prosecution Exhibit (PE) 163.
[7] R. 1588, 1609.
[8] R. 1610-11.
[9] R. 1628-29, 1713-14; PEs 88, 162.
[10] R. 1583-86.
[11] Id.
[12] PE 1; R. 1225, 1259, 1290.
[13] PE 1 and 123; R. 1225-26.

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[7] R. 1588, 1622.
[8] R. 1610-11.
[9] R. 1628-29, 1713-14; PEs 88, 162.
[10] R. 1590-91.
[11] *Id.*
[12] PE 1; R. 1225, 1259, 1290.
[13] PE 1 and 223; R. 1225-26.

Appellant donned the Interceptor Body Armor (IBA) of PFC Pannell and left the sleep tent, leaving his own IBA behind.[11] Appellant then walked from Pad 4 to Pad 7, where the Brigade Headquarters was located;[12] a distance of approximately 500 to 600 meters.[13] Appellant went to the stand-alone light generator and switched it off, plunging the outside of Pad 7 into darkness.[14] Appellant moved from the generator to the entrance of Tent 1, which displayed a sign that identified it as the brigade command team's sleep tent, occupied by Colonel (COL) [redacted] (Brigade Commander), Command Sergeant Major (CSM) [redacted] (Brigade Command Sergeant Major), and MAJ [redacted] (Brigade Executive Officer).[15] Appellant removed an M-14 incendiary grenade, pulled the pin, and threw the grenade into Tent 1.[16] The incendiary grenade ignited, filling the tent with smoke and fire.[17] Appellant then pulled out an M-67 fragmentation grenade, pulled the

[14] PE 2; R. 1248, 1267, 1334, 1388, 1649, 1478.
[15] R. 1235-36; PE 188.
[16] R. 1245-46.
[17] R. 1771, 1774, 1788-89; PE 8.

hands.[23] MAJ [redacted] survived the gunshot, but his hands were permanently disabled.[24]

After shooting MAJ [redacted], appellant moved to Tent 2 and pulled another fragmentation grenade. Appellant yelled into the tent, "We're under attack!" before throwing the grenade into the tent.[25] The grenade exploded, sending shrapnel flying through the air, wounding several of the tent's occupants and setting the tent on fire.[26] One of the officers sleeping inside Tent 2 was MAJ Stone.[27] The explosion from appellant's grenade shredded MAJ Stone's body with eighty-three shrapnel wounds.[28] MAJ Stone bled to death.[29]

Appellant then moved toward Tent 3, which had a sign in front of it that read, "The Captains Club."[30] At that moment CPT [redacted], having heard the other explosions, exited Tent 3 and bumped into appellant.[31] CPT [redacted] yelled, "What the fuck?!?"[32] Appellant responded, "We're under attack."[33] After CPT [redacted] moved out, appellant moved to the entrance of Tent 3 and threw a fragmentation grenade inside.[34] The grenade

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[18] R. 1791; PEs 9 and 10.

[19] R. 1515.

[23] R. 1250-51.

[24] PEs 215 and 216; R. 1235-36, 2739-40.

[25] R. 1262, 1282, 1284, 1294-96, 1312-14, 1319, 1328-29.

[26] R. 1263-65, 1296, 1313, 1330-31, 1346-47; PEs 15-21.

[27] PE 22; R. 1273, 1285-86.

[28] R. 1250-51, 1297-98, 1315-17, 1332; PE 195 at 3.

[29] PEs 18 and 195 at 3; R. 1298-99.

[30] R. 1353; PEs 29, 200.

[31] R. 1262, 1282, 1284, 1294-96, 1312-14, 1319, 1328-29.

[32] R. 1371.

[33] R. 1360, 1371, 1389.

[34] R. 1372, 1374.

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[23] R. 1250-51.

[24] PEs 136 and 216; R. 2735-36, 2739-40.

[25] R. 1262, 1282, 1284, 1294-96, 1312-14, 1319, 1328-29.

[26] R. 1263-65, 1296, 1313, 1330-31, 1346-47; PEs 15-21.

[27] PE 22; R. 1275, 1285-86.

[28] R. 1264, 1297-98, 1315-17, 1332; PE 195 at 3.

[29] PEs 18 and 195 at 3; R. 1298-99.

[30] R. 1353; PEs 29, 200.

[31] R. 1360, 1370-71.

[32] R. 1371.

[33] R. 1360, 1371, 1389.

[34] R. 1371, 1378.

[35] R. 1361-63, 1373, 1389-93, 1402-04, 1408-09, 1413, 1423-26, 1428, 1434-39, 1449, 1451-52; PEs 23-28, 201, 233, 262, and 273-284.

[36] PE 195 at 2.

[37] R. 1471-72.

[38] R. 1472-73.

[39] R. 1473.

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During his attack on Pad 7 appellant was wounded by one of his own grenades.[42] As appellant limped away from murdering CPT Seifert he encountered CPT Jerry Buchannan just outside of the Tactical Operating Center (TOC) tents.[43] When CPT Buchannan asked appellant what was happening, appellant responded that he was "hit."[44] CPT Buchannan noticed that appellant was favoring his knee and limping.[45] CPT Buchannan told appellant to wait while he went to find medical assistance; however, when CPT Buchannan returned appellant was gone.[46]

The Brigade believed that they were under enemy attack and that their perimeter was compromised.[47] MAJ [redacted] the Brigade S-2, began moving from a safe area to set up a perimeter and coordinate any response that might be necessary.[48] MAJ [redacted] enlisted the assistance of First Lieutenant (1LT) Grant Sketo in setting up a perimeter around the TOC.[49] 1LT Sketo approached the

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[35] R. 1361-63, 1373, 1389-93, 1402-04, 1408-09, 1413, 1423-26, 1428, 1434-39, 1449, 1451-52, 1455-57, 1461-62, 1471-72, 1473-74, 1476-77, 1480-81, 1483, 1485-87, 1489-91, 1493-94, 1496-97, 1499-1500, 1502-03, 1505-06, 1508-09, 1511-12, 1514-15, 1517-18, 1520-21, 1523-24, 1526-27, 1529-30, 1532-33, 1535-36, 1538-39, 1541-42, 1544-45, 1547-48, 1550-51, 1553-54, 1556-57, 1559-60, 1562-63, 1565-66, 1568-69, 1571-72, 1574-75, 1577-78, 1580-81, 1583-84, 1586-87, 1589-90, 1592-93, 1595-96, 1598-99, 1601-02, 1604-05, 1607-08, 1610-11, 1613-14, 1616-17, 1619-20,

while he went to find medical assistance; however, when CPT Buchanan returned appellant was gone.[46]

The Brigade believed that they were under enemy attack and that their perimeter was compromised.[47] MAJ [redacted] the Brigade S-2, began moving from area to area to set up a perimeter and coordinate any response that might be necessary.[48]

MAJ [redacted] enlisted the assistance of First Lieutenant (1LT) Grant Sketo in setting up a perimeter around the TOC.[49] 1LT Sketo approached the Soldier on his left side, who turned out to be appellant.[50] When 1LT Sketo asked appellant what he was doing on Pad 7, appellant told him, "I was using the latrine."[51] 1LT Sketo assigned appellant a sector of fire,[52] and they waited there until Sergeant First Class (SFC) Thomas Butler sent appellant to a nearby bunker to push out the perimeter.[53]

When MAJ [redacted] went to brief COL [redacted] on the security situation, COL [redacted] told MAJ [redacted] "This may have been one of our own. 2d Battalion is missing an engineer soldier. His name is Sergeant Akbar. . . . There's some ammo missing."[54] MAJ [redacted] went back out to continue his security duties.[55] MAJ [redacted] approached a group of Soldiers at a bunker and asked them to identify themselves.[56] Appellant identified himself as "Sergeant Akbar."[57] MAJ [redacted] approached appellant and saw the letters A-K-B-A-R on appellant's helmet band.[58] MAJ [redacted] moved up behind appellant and tackled him to the ground.[59] After restraining appellant, MAJ [redacted] asked appellant if

[50] R. 1497-98.
[51] R. 1498.
[52] *Id.*
[53] R. 1499.
[54] R. 1678-79.
[55] R. 1680.
[56] R. 1685-86.
[57] R. 1686.
[58] R. 1687.
[59] R. 1688.

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When appellant was apprehended he was found with the one remaining M-67 and two remaining M-14 grenades in his protective mask.[62] The three M-14 canisters were discovered in appellant's JLIST bag.[63] Appellant's assigned weapon was immediately confiscated by SFC Butler.[64] SFC Butler cleared a single round from appellant's rifle,[65] leaving twenty-six of a possible thirty rounds in the magazine.[66] One expended shell casing from an M-4 rifle was discovered in front of Tent 1,[67] and two expended shell

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56 R. 1685-86.
57 R. 1690.
58 R. 1516-19.
59 R. 1688.
60 R. 1690.
61 R. 1382-1843; PE 126.
62 R. 1744-45, 1849, 1926-28, 1950-51; PEs 77, 79, 180, 230.
63 R. 1824, 1843; PE 126.
64 R. 1744.
65 R. 1745, 1752.
66 R. 1867-68; PE 144.
67 R. 1781, 1809.

LVIII.

THE PANEL'S RECONSIDERATION OF THE SENTENCE IN APPELLANT'S CASE VIOLATED THE DOUBLE JEOPARDY CLAUSE OF THE FIFTH AMENDMENT BECAUSE "NO PERSON . . . SHALL BE SUBJECT FOR THE SAME OFFENSE TO BE TWICE PUT IN JEOPARDY OF LIFE." *SEE BURLINGTON V. MISSOURI*, 451 U.S. 430 (1981) (APPLYING THE DOUBLE JEOPARDY CLAUSE OF THE CONSTITUTION TO CAPITAL SENTENCING); *SEE ALSO* R.C.M. 922(B)(2) (ANALYSIS: RULE WAS AMENDED TO CONFORM TO R.C.M. 1004(A) REQUIREMENT THAT A SENTENCE OF DEATH BE UNANIMOUS. THE RULE PRECLUDES THE USE OF RECONSIDERATION UNDER R.C.M. 924 TO CHANGE AN INITIAL NONUNANIMOUS FINDING OF GUILTY IN TO A UNANIMOUS VERDICT FOR THE PURPOSE OF AUTHORIZING A CAPITAL SENTENCING PROCEEDING. THE SAME CONCERNS ARE PRESENT IN BARRING THE RECONSIDERATION OF A NONUNANIMOUS SENTENCE FOR DEATH INTO A UNANIMOUS SENTENCE OF DEATH).

Law and Argument

This Assigned Error appears to be a verbatim copy of Assignment of Error XXII. As noted in the answer to Assignment of Error XXII, the law specifically allows for a panel to reconsider its sentence before the sentence is announced.

Conclusion

None of appellant's assignments of error merit relief. The Government respectfully submits that this Honorable Court should affirm the approved findings and sentence.

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Certificate of Service

I hereby certify that I served or caused to be served a copy of the foregoing on this Court and Defense Appellate Division by hand, on 29 November 2010.

I certify that a copy of the foregoing was served by hand to this Court and Defense Appellate Division on 29 November 2010.

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